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A POSTSCRIPT: SOVEREIGNTY IS STILL THE ISSUE

We are thankful for the contributions to Challenging the Justifications of Domination through Religion: “We were planting corn, and they were planting crosses” and “Challenging the Justifications of Domination through Law: Indigenous Resistance and the Undoing of Christian Empire.” Both special issues make critical interventions into religious studies, critical Indigenous studies, and critical religious studies. Building on the work on these two issues, we wanted to reflect on one of the themes we see as most urgent: sovereignty. Recently, when teaching a course, Betty told the class that sovereignty is still the issue.

Presently, debates about sovereignty proliferate about what sovereignty is and who is truly sovereign. Articles are being written on food sovereignty, energy sovereignty, sovereignty through gaming, sovereignty through cannabis, and all sorts of carve-outs to sovereignty.² Each of these attempts has a fundamental flaw and concerns us, and they operate on the model of tribal sovereignty rather than Indigenous sovereignty. As our friend and colleague Joseph J. Heath, who is the Onondaga Nation General Counsel, has argued, Indigenous nations are sovereign; they are not tribes.³ To speak of an adjectivally modified version of sovereignty is to already surrender to and to play the settler colonial game of asking for permission and participation within a hegemonic system of domination that is not designed or meant for Indigenous nations or peoples. True Indigenous sovereignty, as Onondaga Nation Turtle Clan Faithkeeper Oren Lyons says, “sovereignty is the act thereof.”⁴

For Indigenous nations to be sovereign, they must act sovereignly and not engage in caretaking or attempts to diminish their sovereignty. Indigenous nations and peoples need full and absolute sovereignty. How can one have energy sovereignty without food sovereignty, without a precolonial traditional Indigenous system of government, and the list goes on.

¹ While Nathaniel did not attend the 2023 The Religious Origins of White Supremacy: *Johnson v. McIntosh* and the Doctrine of Christian Discovery conference at Syracuse University his editorial insights and comments were so helpful we asked him to join and become an equal contributor to the piece.

² For a representative sample of recent articles on the aforementioned types of sovereignty see: Ronald Byaruhanga and Ellinor Isgren, “Rethinking the Alternatives: Food Sovereignty as a Prerequisite for Sustainable Food Security,” *Food Ethics* 8, no. 2 (2023): 16; Devon Sampson et al., “Food Sovereignty and Rights-Based Approaches Strengthen Food Security and Nutrition across the Globe: A Systematic Review,” *Frontiers in Sustainable Food Systems* 5 (2021): 686492; Raj Patel, “Food Sovereignty,” *The Journal of Peasant Studies* 36, no. 3 (2009): 663–706; Daniel Raimi and Alana Davicino, “Securing Energy Sovereignty: A Review of Key Barriers and Opportunities for Energy-Producing Native Nations in the United States,” *Energy Research & Social Science* 107 (2024): 103324; Cristian Timmermann and Eduardo Noboa, “Energy Sovereignty: A Values-Based Conceptual Analysis,” *Science and Engineering Ethics* 28, no. 6 (2022): 54; Guillermo J Garcia Sanchez, “In the Name of Energy Sovereignty,” *BCL Rev.* 63 (2022): 2475; Alyssa Wood, “When the River Runs Green: The Intersection Between Tribal Sovereignty, Economy, and Environmental Stewardship,” *Footnotes: A Journal of History* 7 (2025); Nicholas D Chinn, *Sovereignty Games: Tribal Gaming Regulation in the Contemporary United States*, 2025; John T Holden, “Access or Sovereignty,” *Emory Law Journal, Forthcoming*, 2024; Michelle Watts, “Making Sovereignty Mean Something: Native Nations and Creative Adaptation,” *IAFOR Journal of Cultural Studies* 6, no. 1 (2021): 5–22, <http://iafor.org/archives/journals/iafor-journal-of-cultural-studies/10.22492.ijcs.6.1.01.pdf>; Konstantia Koutouki and Katherine Lofts, “Cannabis, Reconciliation, and the Rights of Indigenous Peoples: Prospects and Challenges for Cannabis Legalization in Canada,” *Alta. L. Rev.* 56 (2018): 709; Andrew Crosby, “Contesting Cannabis: Indigenous Jurisdiction and Legalization,” *Canadian Public Administration* 62, no. 4 (2019): 634–55; Kaitlin Reed, “Cannabis, Settler Colonialism, and Tribal Sovereignty in California,” in *The Routledge Handbook of Post-Prohibition Cannabis Research* (Routledge, 2021).

³ Joseph J. Heath, “Nations Are Sovereign: They Are Not ‘Tribes,’” BLog, *Doctrine of Discovery Project*, 2020, <https://doctrineofdiscovery.org/assets/pdfs/NATION-NOT-TRIBE3-6-18.pdf>.

⁴ Oren Lyons, “‘Sovereignty and the Natural World Economy’ as Part of ‘the Current Picture: Progress or Impasse?’” in *Justice for Natives*, ed. Andrea P. Morrison and Irwin Cotler, Searching for Common Ground (McGill-Queen’s University Press, 1997), JSTOR, <http://www.jstor.org/stable/j.ctt7zn4m.13>; Oren Lyons, “Law, Principle, and Reality,” *N.Y.U. Review of Law & Social Change* 20, no. 2 (1992): 209–15.

Additionally, when we speak of and talk about Indigenous sovereignty, it is not enough to imagine it just for Indigenous nations and peoples; we must think as our dear friend and ancestor Tupac Enrique Acosta (Izkaloteka Mexica Azteca), of Tonatierra, would always say, what about the territorial integrity and sovereignty of our Mother the Earth?⁵ To be Indigenous is to be in the right proper relationship to the natural world, living in harmony with all living beings, not privileging the one over the other. Acosta issues a clarion call for Indigenous nations to move beyond dismantling the Doctrine of Christian Discovery and to begin succeeding it by returning to our traditional pre-colonial lifeways. Part of this return is reconnecting with Indigenous traditions and learning from Indigenous elders who never stopped speaking their language and who continue to preserve and maintain their Indigenous lifeways. As Acosta makes clear, this is not work to be taken lightly or work that shames anyone who became disconnected through the boarding schools and other systems of domination; it is about healing and transformation.

What Is Sovereignty?

There is a lot of confusion about what sovereignty is and what it is not, and there are various types of sovereignty. We turn now to a brief analysis of how sovereignty is most commonly understood, followed by how we define and use the term. The Oxford English Dictionary defines sovereignty as a noun borrowed from French and, most commonly, as “senses relating to supreme power or authority.”⁶ The OED really captures what we see to be the common vernacular sense of the term. The Stanford Encyclopedia of Philosophy offers a slightly more expansive definition with “*supreme authority within a territory*.”⁷ The two most essential elements we see in these definitions are the emphasis on supreme power and authority and the tie to territory. Readers of this special double issue and students of the Doctrine of Christian Discovery and Dominion Theology in general will notice a substantial similarity between these two definitions of sovereignty and standard eurochristian definitions of god.⁸ The primary difference is that, for many forms of *eurochristianity*, there are no territorial constraints on God. When the Peace of Westphalia in 1648 is used to discuss the rise and development of the sovereign state, we must acknowledge that Westphalia serves as a sort of lodestar, orienting scholarship towards a particular moment and type of sovereign formation. What this lodestar does is steer the *eurochristian* settler colonial nation station ship in a specific direction. The Peace of Westphalia was almost two hundred years after *Dum Diversas*.⁹ Thus, the enlightenment understanding of sovereignty is already emerging from *Eurochristianity* and its colonial encounter with the Indigenous nations and peoples of the African continent and the Western Hemisphere. Likewise, intellectual sovereignty emerges through the theo-political

⁵ Tupac Enrique Acosta, “Superseding the Doctrine of Discovery: World Water One,” *Doctrine of Discovery Project*, March 29, 2023, <https://doctrineofdiscovery.org/blog/1CEMANAHUAC/>.

⁶ Oxford English Dictionary, *Sovereignty*, n., *Sense II.5* (Oxford University Press, June 2025), Oxford English Dictionary, <https://doi.org/10.1093/OED/3200619526>.

⁷ Emphasis in the original. Daniel Philpott, “Sovereignty,” in *The Stanford Encyclopedia of Philosophy*, Fall 2024, ed. Edward N. Zalta and Uri Nodelman (Metaphysics Research Lab, Stanford University, 2024), <https://plato.stanford.edu/archives/fall2024/entries/sovereignty/>.

⁸ Adam DJ Brett and Betty Hill (Lyons), “Documenting Domination: From the Doctrine of Christian Discovery to Dominion Theology,” *Religions* 15, no. 12 (2024), <https://doi.org/10.3390/rel15121493>.

⁹ Indigenous Values Initiative, “Dum Diversas,” *Doctrine of Discovery*, July 23, 2018, <https://doctrineofdiscovery.org/dum-diversas/>.

thought of *eurochristian* theologians such as Martin Luther and philosophers such as Thomas Hobbes. Another complicating wrinkle occurs after World War II, when the modern sovereign nation-state begins to emerge, international law and human rights practices become sharper, self-determination becomes a watchword, and documents like the UN Declaration on the Rights of Indigenous Peoples (UNDRIP) emerge. As in previous epochs, this contemporary epoch bears its fair share of discontents and malcontents, some of whom harbor a desire to return to the halcyon days of yore and reclaim the role of colonizer and dominator. Likewise, there remain those like Indigenous peoples and Anticolonial Arrivants who refuse to join and participate in a system that was never designed or meant for them.¹⁰

The linguistic turn in postmodernism and poststructuralism, which informed so much of the humanities and social sciences, helps illuminate the complexities of sovereignty. Professor of Canadian constitutional law and international law at the Université de Montréal, Stéphane Beaulac uses these two movements in *The Power of Language in the Making of International Law* to develop two principal arguments. First, "sovereignty" as a "linguistic sign" is an "organic instrument of great social power" that can transform reality. Second, "Westphalia" as another "mystical sign" can create a 'mythical reality' that endures. We agree with Beaulac that, cognitively and linguistically, sovereignty has become a sign of social power that is difficult to escape. Therefore, one must think with it and against it, finding ways to make and remake the term until we find better concepts. Likewise, Westphalia is a mythic sign that, like sovereignty, has created a hegemonic worldview that is difficult to escape. Indigenous legal expert Steven T. Newcomb (Shawnee/Lenape) points out this exact dilemma in his classic *Paganism in the Promised Land*. Like Beaulac, he uses linguistics and cognitive science to explore domination as a mental and conceptual framework rather than merely a set of politics or historical acts. Drawing on George Lakoff, Mark Johnson, and Steven Winter, Newcomb argues that domination through law operates through idealized cognitive models, metaphors, and image schemas that shape how people unconsciously reason about land, power, legitimacy, and, to that list, we would add sovereignty. In *Pagans in the Promised Land*, he shows that U.S. Federal Indian Law is structured by deeply embedded metaphors inherited from Christendom, such as Christian people vs. heathens, chosen people-promised land, and conqueror-dominion. Thus, the linguistic turn in the humanities helps us understand why and how frameworks of domination persist in their symbolic and material hegemonic position of dominion, because they operate at the level of our individual and collective unconscious. Therefore, there is an urgent need to find a decolonial alternative to the term sovereignty that better reflects the Indigenous values we will discuss later in the article.

Embodied Sovereignty

As Ernest Kantorowicz argues in his classic *The King's Two Bodies* (1957), political thought underwent a significant change during the Middle Ages, especially as the concept of the body of Christ involved a notion of two bodies, *corpus naturale* (the consecrated host) and *corpus mysticum* (the social body of the church). Over time, the *corpus mysticum* would evolve into a social body with an increasingly complex administrative structure. Kantorowicz traces

¹⁰ Inspired by Jodi Byrd Sarah Nahar has helped to convene a group called Anti-Colonial Arrivants. For more on this approach to organizing and collective action see Jodi A Byrd, "Weather with You: Settler Colonialism, Antiracism, and the Grounded Relationalities of Resistance," *Critical Ethnic Studies* 5, nos. 1-2 (2019): 207-14.

how, over time, *corpus naturale* and *corpus mysticum* become the king's two bodies. The king's physical body would pass away in death, but his mystical or supernatural body that could not be destroyed would pass down through his progeny. Scholars have rightly debated whether the modern notion of sovereignty that emerged as dominant in early modern Europe manifested the qualities Kantorowicz describes of a single, unified "body" confined within territorial borders, etc. Nevertheless, Kantorowicz's framework is a helpful mythic framing and orientation for understanding sovereignty and how it functions today. The answer is that sovereign nation-states tend to conceive of themselves with a quite frequently within a *eurochristian* framework and a mythic theological/political/ jurisprudential framework that at first pass appears coherent but the more that one examines it the more complexity that emerges, the essays in these two special issues Challenging the Justifications of Domination through Religion: "We were planting corn, and they were planting crosses" and "Challenging the Justifications of Domination through Law: Indigenous Resistance and the Undoing of Christian Empire" demonstrate.¹¹

These practices of sovereignty possess a *habitus* that perhaps spur the enlightenment conception of sovereignty as a project of theopolitical oppositional defiance and assumed superiority.¹² Following Pierre Bourdieu, what we see unfolding here are dynamic, generative practices of sovereignty, forever changed by encounters with new societies and social conditions, even as they tend to reproduce existing social structures. We do not see *habitus* as deterministic or static, but rather as one conduit through which contemporary practices of sovereignty flow and transform.

Authority and Legitimacy

When we think of authority and the legitimacy of nation-states in the contemporary era, it is essential to keep in mind the *eurochristian deus otiosus* undergirding the concept of divine authority, as in plenary power and the invisible hand of the market. So many others putatively appeal to "common sense" authority, as Newcomb notes; once you begin to ask from where this authority is derived, the theological content of many conceptions of authority becomes clear.¹³ The *eurochristian* theology of hidden, unquestioned divine power serves as a vital core meaning of sovereignty as *supreme authority within a territory* today. Without meaningful international laws, the territory that a sovereign nation-state may claim as its own is as much as it believes its divine right allows. Thus, colonial expansion is justified in the name of God and/or by papal bulls, and/or by the Monroe Doctrine, the Roosevelt Corollary, etc. Medieval political theology transubstantiated the *corpus mysticum* of Christ into the *corpus politicum*, which will eventually become the modern Euro-Christian nation-state, whose defining characteristics are the divinization and sanctification of political authority and settler coloniality. *Eurochristian* sovereignty is not mere coercive power but the *right* to command and be obeyed (why? Because I/God said so). This legitimacy is grounded in recognized sources such as divine law, natural

¹¹ Daniel Philpott, "Sovereignty," in *The Stanford Encyclopedia of Philosophy*, Fall 2024, ed. Edward N. Zalta and Uri Nodelman (Metaphysics Research Lab, Stanford University, 2024), <https://plato.stanford.edu/archives/fall2024/entries/sovereignty/>.

¹² Cf. Pierre Bourdieu, "Habitus," in *Habitus: A Sense of Place* (Routledge, 2017); Pierre Bourdieu, "Structures, Habitus, Practices," in *Rethinking the Subject* (Routledge, 2018).

¹³ Philip P. Arnold and Sandra L. Bigtree, "Ten Religious Themes of the Doctrine of Christian Discovery (DoCD) That Contrast with Indigenous Values," *Doctrine of Discovery Project*, September 26, 2022, <https://doctrineofdiscovery.org/10-religious-dimensions/>; Brett and Hill (Lyons), "Documenting Domination"; Adam D. J. Brett and Betty Hill, "Examining the Doctrine of Discovery in Religion and Indigenous Studies," *Religion Compass* 20, no. 1 (2026): e70039, <https://doi.org/10.1111/rec3.70039>.

law, constitutions, or international law. In modern states, law itself is the predominant source of sovereign authority.

Supreme Authority

Like in the medieval period, today, sovereign authority is the *highest* within the domain. The sovereign stands above all others, granting authority and legitimacy to whom they see fit. This becomes the case increasingly as democratic norms erode and authoritarianism fuses with populism. Fear, anxiety, and cynical nihilism are the *habitus* of supremacy within modern conceptions of sovereignty.¹⁴

Federal Anti-Indian Law as a System of Domination

One of the most potent examples of supreme authority being weaponized as a system of domination is Federal Indian Law, or, as Peter d'Errico *more accurately renames it*, *Federal Anti-Indian Law*. He writes,

“Conventional definitions of sovereignty fail us in trying to understand this situation. Sovereignty is typically spoken of as a quality possessed by someone. But sovereignty is an *action* rather than a static condition. Sovereignty is a *claim* of dominance over others. It is an exertion of force in a field of forces. John Marshall [a founding figure of federal Indian law,] aimed at two [groups] in making the U.S. claim to continental sovereignty: Indigenous peoples and the individual states. Nearly every federal [Indian] law case is concerned with sovereignty.”¹⁵

One of the most contemporary versions of this situation is *McGirt v. Oklahoma* (2020), in which Justice Neil Gorsuch argued in favor of the Muscogee (Creek) Nation reservation's existence despite arguments to the contrary by the state of Oklahoma. Many scholars of Indigenous legal issues have no doubt praised similar decisions as the benevolent United States succeeding its “promise,” as Gorsuch characterized the United States' domination of Indigenous peoples in his majority opinion on the case.¹⁶ However, such success in capitulation will always remain a half measure and come back to hurt Indigenous peoples in the end. *McGirt* makes it clear that all land within the Muscogee (Creek) Nation reservation could be transferred to Oklahoma in the future through an act of Congress.¹⁷ As d'Errico argues, the United States is actively proving its sovereignty when it takes control of Indigenous lands and people. The purpose of *McGirt* was to prove a point to Oklahoma first and foremost. As was argued previously, limitations on sovereignty will never be a valid path to Indigenous liberation.

¹⁴ Adam DJ Brett, “Catastrophic Christianity: An Iconological Study of the Messianic Idea in American Protestant Christianity Circa 1900-1940,” in *ProQuest Dissertations and Theses* (Ph.D., Syracuse University, 2022), 2700418394, ProQuest Dissertations & Theses Global, <https://surface.syr.edu/etd/1544/>.

¹⁵ Peter P. d'Errico, *Federal Anti-Indian Law: The Legal Entrapment of Indigeneous Peoples*, 1st ed. (Bloomsbury, 2024).

¹⁶ Matthew L.M. Fletcher, *Statement of Matthew L.M. Fletcher before the Senate Committee on Indian Affairs – Oversight Hearing on Fulfilling the Federal Trust Responsibility: The Foundation of the Government-to-Government Relationship*, Legal Research Paper Series (Michigan State University College of Law, 2012), 1, <https://ssrn.com/abstract=2060395>; *McGirt v. Oklahoma* (The United States Supreme Court July 9, 2020), <https://supreme.justia.com/cases/federal/us/591/18-9526/>.

¹⁷ Conor P. Cleary, “McGirt v. Oklahoma: A Primer,” *Oklahoma Bar Journal* 3 (2022), <https://www.okbar.org/barjournal/march-2022/cleary/>.

However, one of the most recent versions of this situation is *McGirt v. Oklahoma* (2020), in which Justice Neil Gorsuch argued in favor of the Muscogee (Creek) Nation's reservation's existence despite arguments to the contrary by the state of Oklahoma. On the surface, such a decision might seem like an overwhelming victory for Indigenous nations; however, as in *Mancari*, a closer inspection reveals hidden issues worth paying attention to. Gorsuch consistently describes the relationship between Indigenous nations and the federal government as one grounded in "a promise," rather than in anything defensible in court.¹⁸ If that was not already bad enough, Gorsuch concludes his majority opinion by making it clear Oklahoma can ask Congress for Muscogee (Creek) Nation land later. One of the most essential parts of Gorsuch's ruling is Congressional authority, or, in other words, federal sovereignty, which precedes Oklahoma.¹⁹ As d'Errico states, the United States is actively proving its sovereignty when it takes control of Indigenous lands and people. We see the purpose of *McGirt* as establishing a point for Oklahoma first and foremost; any benefit to Indigenous nations is always secondary, if not coincidental.

With that said, scholars could also argue that Justices like Neil Gorsuch and Clarence Thomas seek to improve Federal Indian Law. When the Supreme Court refused to hear the case *Quentin Veneno, Jr. v. United States*, Justice Gorsuch gave a dissenting opinion, which was the first sign of real hope for dismantling the power structure that has become institutionalized by the United States Government. Gorsuch writes, "this Court is responsible...[and] this Court holds the power to correct it." He argues that the amount of federal power Congress has over federally recognized tribes would be "unthinkable elsewhere in the United States" and claims that Congress no more has ultimate authority over "tribes" than they do states.²⁰

This part is a key distinction for Gorsuch; his core claim is not that Indigenous nations should be treated as nations. Rather, he is arguing that "tribes" should be treated as states. In other words, even this major potential capitulation by the federal government is yet another half measure. Therefore, given how Federal Indian Law operates in the context outlined above, can the United States be trusted with another half-measure? We would argue no, because the United States has consistently shown that violating even state autonomy is essential to fortifying its own claims of sovereignty. In fact, Whitehouse Aide Steven Millar has mentioned the potential use of plenary power, a word consistently used in Federal Indian Law to define Congressional ultimate power over Indigenous nations, to justify a federal invasion of Illinois as recent as 2025.²¹

¹⁸ *McGirt v. Oklahoma*, vol. 591.

¹⁹ Cleary, "McGirt v. Oklahoma: A Primer."

²⁰ *Quentin Veneno, Jr. v. United States*, 2026, https://www.supremecourt.gov/opinions/25pdf/24-5191_6479.pdf; Steven T. Newcomb and Peter d'Errico, "Supreme Court Justices Attack 'Plenary Power' over Native Peoples," *The Domination Chronicles Podcast*, November 18, 2025, <https://dominationchronicles.com/episodes/e006-plenary-power/>; *Episode 009: McGirt v. Oklahoma: Revealing and Concealing Domination*, December 17, 2025, <https://dominationchronicles.com/episodes/e009-mcgirt-oklahoma-revealing-concealing/>.

²¹ *Stephens v. Cherokee Nation* (The United States Supreme Court 1899), <https://supreme.justia.com/cases/federal/us/174/445/>; *Lone Wolf v. Hitchcock* (The United States Supreme Court January 5, 1903), <https://supreme.justia.com/cases/federal/us/187/553/>; *Morton v. Mancari* (The United States Supreme Court 1974), <https://supreme.justia.com/cases/federal/us/417/535/>; *Apache Stronghold v. United States* (9th Circuit of Appeals 2024), <https://law.justia.com/cases/federal/appellate-courts/ca9/21-15295/21-15295-2024-03-01.html>; Sophie Rosenthal, "Stephen Miller's Comments on Presidential Powers Spark Search Interest in 'Plenary Authority,'" Blog, *WUSA9*, October 8, 2025, <https://www.wusa9.com/article/news/verify/what-is-plenary-authority-stephen-miller-donald-trump-cnn/65-050f2773-f146-46f7-8bb1-abcca0881859#>.

Territoriality and Geographical Boundaries

The question of who, what, and where belongs to the sovereign is often underexamined and underexplored, especially at the international level. The loudest and strongest sovereign's maps and claims tend to pass unremarked. For example, look in mapping software and see what the name for *Chalchiuhtlicueyecatl* is: is it the Gulf of Mexico or the Gulf of America, or is it one of the many Indigenous names for that body of water, which is perhaps more accurately understood as a relative?²² Far too often in international relations, territorial assumptions by sovereign nations imagine borders as rigid rather than fundamentally porous. Territoriality distinguishes modern sovereignty and explains how diverse populations can fall under a single authority despite their identities.

Who holds Sovereignty?

When we think of sovereignty in the modern era, the question arises: who holds sovereignty? Is it the monarchs, the people, the parties, or the constitutions? Or is it something more abstract and invisible? For noted conservative Reformed Baptist theologian John Piper, the unrestrained sovereignty of God is best seen through an expansive understanding of missions, and also God's wrath. While Piper might not see his conception of missions and sovereignty as settler-colonial, we certainly do.²³ For him, the *eurochristian* God is the absolute sovereign whose nation-state borders cannot contain. Piper writes:

"It is our unspeakable privilege to be caught up with him in the greatest movements in history – the ingathering of the elect "from all tribes and tongues and peoples and nations" until the full number of the Gentiles come in, and all Israel is saved, and the Son of Man descends with power and great glory as King of kings and Lord of lords and the earth is full of the knowledge of his glory as the waters cover the sea for ever and ever. Then the supremacy of Christ will be manifest to all and he will deliver the kingdom to God the Father and God will be all in all!"²⁴

While writing in the modern era, Piper's writing nevertheless reflects several *eurochristian* genealogical trends, such as Reformed theology, Reformed Baptist theology, and missiology, and we suggest it should also be considered within the framework of Dominion Theology.²⁵ For Piper, the sovereignty of God and the supremacy of Christ demand that all the earth be under the supreme authority and celebrate the glory of God. Then the Kingdom of God can be made manifest. Amongst the many things that Piper leaves out is who the damned are and what happens to them. The all-powerful sovereign God of Piper requires some people to be saved and others to be damned and excluded from this kingdom. This is very much a theologically supremacist model that then also impacts political notions of sovereignty. It is far

²² Ivon Cristina Encinas Hernández, *Las Ofrendas de Tepeilhuitl Entre Los Nahuas Prehispánicos, Reminiscentes En El Atltepeilhuitl y El Carnaval Contemporáneo de Papalotla*, Tlaxcala, 2025; Brett and Hill, "Examining the Doctrine of Discovery in Religion and Indigenous Studies."

²³ John Piper, "The Supremacy of God among All the Nations," *International Journal of Frontier Missions* 13, no. 1 (1996): 15–26; John Piper, *Let the Nations Be Glad!: The Supremacy of God in Missions* (Baker Academic, 2010); John Piper, *The Supremacy of God in Preaching* (Baker Books, 2015).

²⁴ Piper, "The Supremacy of God among All the Nations," 24.

²⁵ Brett and Hill (Lyons), "Documenting Domination:"

too easy for eurochristians within Piper's model to assume that they are the elect and their enemies or people they don't like do God damn the same ones for all eternity. It is not a far stretch to move from a theologian like Piper with a strong concept of divine sovereignty to those calling for a *theonomic* conceptualization of nation-state sovereignty, such as R.J. Rushdoony and proponents of the Seven Mountain Mandate.²⁶

Mythic Origins of Sovereignty and the Peace of Westphalia

Modern understandings of sovereignty were not brought forth via *creatio ex nihilo*, nor were they implemented on *terra nullius*; instead, they emerge from *creatio ex profundis*, and the approaches most commonly upheld are *eurochristian* in nature and settler colonial in scope. Westphalia did not create sovereignty, any more than the *Inter Caetera* (1493) developed the theologies of domination. Both, instead, emerge from the depths of many competing theories. Nevertheless, both help mark and orient researchers towards more complicated and nuanced etiologies. By focusing on the Peace of Westphalia, we highlight a landmark on the event horizon that serves as a proximal marker of when European nation-states become the primary holders of political authority, eclipsing the Holy Roman Empire and the Roman Catholic Church's temporal power over civil society. Martin Luther is one example of how Protestants challenged and ultimately undermined the Roman Catholic Church's temporal authority, thereby beginning to transfer political supremacy to territorial rulers. What we see emerging after Westphalia is a territorially bounded state-centered international order. International governing bodies are comprised of nation-states that gain legitimacy through recognition by other nation-states and through various forms of exchange across their geographical boundaries. This understanding is, of course, complicated by groups like the European Union, the United Nations, trade agreements, and military base placements and agreements.

The popular myth is that 1648 founded modern sovereignty and a fully "Westphalian" international order. Rather than inaugurating absolute, territorially bounded state sovereignty, the treaties reveal a world in which sovereignty was partial, layered, and constrained: imperial, ecclesiastical, dynastic, and local authorities continued to overlap, and rights were negotiated rather than cleanly transferred. Westphalia did not abolish the Holy Roman Empire, decisively end papal influence, or clearly establish the sovereign equality of states; instead, it managed conflict through compromise, guarantees, and exceptions that preserved older legal forms while adapting them to new political realities. Sovereignty, in historian Derek Croxton's analysis, functioned less as a clear principle than as an emerging assumption about authority that coexisted with intervention, shared religious responsibility, and collective enforcement mechanisms. The limits of Westphalia thus lie precisely in its hybridity: it helped stabilize Europe after decades of war, but it did so without creating the neat, self-contained system of sovereign states often projected backward onto it by modern theory.²⁷

²⁶ Molly Worthen, "The Chalcedon Problem: Rousas John Rushdoony and the Origins of Christian Reconstructionism," *Church History* 77, no. 2 (2008): 399–437, Cambridge University Press Journals, <https://doi.org/10.1017/S0009640708000590>; Michael J. McVicar, *Christian Reconstruction: R.J. Rushdoony and American Religious Conservatism*, 1 [edition], 1 online resource (The University of North Carolina Press, 2015), <https://library.biblioboard.com/content/7b26171a-6c95-473d-9052-e478604e887e>; Julie Ingersoll, *Building God's Kingdom: Inside the World of Christian Reconstruction* (Oxford University Press, 2015), WorldCat.

²⁷ Derek Croxton, "The Peace of Westphalia of 1648 and the Origins of Sovereignty," *The International History Review* 21, no. 3 (1999): 569–91.

In agreement with legal and political scientist Professor David Fagelson, we analyze Westphalian sovereignty as a mystical sign that functions as a marker of territoriality rather than as a sign of non-intervention.²⁸ Cognitively, both models persist strongly in people's minds, especially in the United States; however, geopolitically, *Westphalian sovereignty* becomes an empty signifier. In practice, sovereignty has long been violated by powerful states, often under the guise of moral or humanitarian justifications or improper possession of Weapons of Mass Destruction (WMDs). Against this backdrop, Fagelson turns to John Rawls's *Law of Peoples* as a prominent attempt to reconceptualize international order by shifting respect away from states toward "peoples" governed by public reason. Fagelson's central critique is that Rawls's framework grants excessive deference to collective sovereignty at the expense of individual well-being. By requiring liberals to respect illiberal hierarchies so long as they meet minimal human rights standards, Rawls reproduces the problems of Westphalian neutrality under a new name.²⁹

In *A Genealogy of Sovereignty*, noted political scientist Jens Bartelson argues that sovereignty is not a timeless or self-evident principle of political order but a historically contingent form of knowledge that structures how authority, power, and political space are understood. Rather than treating sovereignty as a legal fact or institutional attribute, Bartelson adopts a genealogical method (inspired by Nietzsche and Foucault) to show how sovereignty emerges through changing epistemic frameworks. He traces how medieval, early modern, and modern political thought each articulated different relationships between authority, territory, and legitimacy. Sovereignty, in this sense, is not merely exercised by states; it is a *conceptual lens* that makes certain forms of political power intelligible while marginalizing others.

Bartelson is especially critical of the Westphalian myth, arguing that the Treaty of Westphalia did not "create" sovereignty in its modern sense, nor did it establish a clean break between domestic authority and international anarchy. Instead, Westphalia later became a retrospective narrative device or heuristic used by international legal and political theory to naturalize the modern state system. Charitably, the Westphalian myth served as a navigational waypoint in intellectual history. However, as so often happens with myths, it became fact. By projecting sovereignty backward as a foundational moment, scholars obscured the complex historical processes through which political authority was gradually territorialized and juridically stabilized. Sovereign power thus appears less as an absolute, self-contained authority and more as a historically produced claim to finality – one that depends on shared understandings of law, order, and political identity. Bartelson is correct that within international law, sovereignty operates as both a condition of possibility and a limit. International law presupposes sovereign states as its subjects, yet it simultaneously destabilizes sovereignty by regulating state conduct and embedding states in normative orders beyond their control. This paradox reveals that sovereignty is not the opposite of international law but is co-constituted by it. Bartelson's central contribution is to expose sovereignty as a discursive formation that organizes political power by defining who can rule, where rule applies, and what counts as legitimate authority – making sovereignty less a solution to political order than a problem continuously reproduced by modern political thought.³⁰

²⁸ David Fagelson, "Two Concepts of Sovereignty: From Westphalia to the Law of Peoples?," *International Politics* (The Hague) 38, no. 4 (2001): 499–514.

²⁹ Fagelson, "Two Concepts of Sovereignty: From Westphalia to the Law of Peoples?"

³⁰ Jens Bartelson, *A Genealogy of Sovereignty* (Cambridge University Press, 1995).

Sovereign State Craft

Since World War II, there has been a growing interdependence among sovereign nation-states. Various theories have been offered to explain this increased collaboration and the voluntary limitation of sovereign power, including moral indignation at mass atrocities, the rise of global technocratic interconnected international capitalism, and the ease and speed of travel. Proponents of this new age cite the states' ratification of the Universal Declaration of Human Rights (1948) by 48 of the 58 United Nations members at the time. In the 2004 U.S. Supreme Court case *Sosa v. Alvarez-Machain*, Justice David Souter, writing in the majority opinion, states, "but the Declaration does not of its own force impose obligations as a matter of international law." He goes on to cite the UN Charter, the UNDHR itself, and Eleanor Roosevelt as justification for treating the UNDHR as a statement of principles, further highlighting how, in the courts of the conqueror, any restrictions upon the settler-colonial states' assumed divine right to domination are dismissed. The American Indian Law Alliance, having been a participant in international human rights since 1989, has seen a steady erosion of international legal norms through the recalcitrance of settler colonial nation-states and their refusal to act. This affects not only how these nation-states treat their own citizens but also Indigenous nations and non-citizens within their borders, and how they interact with other countries. Increasingly, bad-faith nation-state actors feel emboldened to intervene against other nation-states without their consent. Likewise, nation-states feel emboldened to escalate their attacks against Indigenous nations as they assume there will be little to no consequences on the international stage. These actions represent a radical departure from the Westphalian norms of non-interference.³¹ When it comes to Indigenous nations and the increasing rise of authoritarianism in the face of democratic norms, where is the much-celebrated international norm of Responsibility to Protect (R2P)?³²

The lack of support for Indigenous nations under the international norm of the R2P further highlights the fundamental limitation of Euro-Christian notions of sovereignty, namely that they are far too atomistic and manipulatable by bad-faith actors who believe that might equals right and throw their weight around, acting with impunity because they know that few will challenge them. All other nation-states' sovereignty becomes subject to the capricious whims of nuclear-armed nations. Our present age is the age of nuclear sovereignty. Westphalian sovereignty has become toxic and volatile. The illusion of the absolute sovereign must kneel before nuclear sovereignty. In an age of nuclear weapons and waste proliferation,

³¹ It is worth examining just how much if at all the Westphalian principles were followed consistently since 1648 but that is outside the scope of this article.

³² Cf. Global Centre for the Responsibility to Protect, "What Is R2P?," NGO, R2P, Global Centre for the Responsibility to Protect, accessed January 1, 2026, <https://www.globalr2p.org/what-is-r2p/>; Global Centre for the Responsibility to Protect, "About the Responsibility to Protect," NGO, R2P, Global Centre for the Responsibility to Protect, accessed January 1, 2026, http://www.globalr2p.org/about_r2p; United Nations. Office of the Special Adviser on the Prevention of Genocide, "Responsibility to Protect," United Nations, accessed March 22, 2016, <https://www.un.org/en/preventgenocide/adviser/responsibility.shtml>; United Nations. Office of the Special Adviser on the Prevention of Genocide, "Mission Statement," United Nations, accessed January 8, 2012, <https://www.un.org/en/preventgenocide/adviser/index.shtml>; Jennifer Welsh and Maria Banda, "International Law and the Responsibility to Protect: Clarifying or Expanding States' Responsibilities?," *Global Responsibility to Protect* 2, no. 3 (2010): 213–31; Ruben Reike and Alex Bellamy, "The Responsibility to Protect and International Law," *Global Responsibility to Protect* 2, no. 3 (2010): 267–86; Brookings Institution, *Sovereignty as Responsibility* (Brookings Institution, 2012), <http://www.brookings.edu/research/books/1996/sovrnty>; Susan Breau, *The Responsibility to Protect in International Law: An Emerging Paradigm Shift* (Routledge, 2016).

we are 89 seconds to midnight and the end of the Anthropocene.³³ Bertrand de Jouvenel and Jacques Maritain are correct that sovereignty, when detached from moral limits and accountability, becomes dangerous.³⁴ We would add that contemporary Westphalian and post-Westphalian notions of sovereignty are conceptually flawed and incompatible with democracy, pluralism, and international law. The alternative for us is a return to the Original Free Prior existence of Indigenous nations and their conception of sovereignty. An approach that takes into account the territorial integrity of Mother Earth and the rights of all living beings. Thus, when we speak of sovereignty, it is essential to ask whose sovereignty and which sovereignty. When we think about the sovereignty of Indigenous nations and peoples, we follow Newcomb and mean the original, free, prior, and existing practices of self-determination that were in place before the fifteenth century on the colonial calendar.

What is Indigenous Sovereignty?

Thinking of Indigenous sovereignty without also considering the sovereignty of Mother Earth is limited and again fragmentary, ceding far too much to the Doctrine of Christian Discovery and Domination, as discussed in detail in these two issues.³⁵ One should not think of Indigenous sovereignty in terms of lines carved into the earth or territories to be mapped, but rather in terms of epistemology and ontology, one that cannot be captured in settler-colonial languages. Sovereignty is too English and eurochristian to capture what we mean by sovereignty fully.³⁶ Again, we return to Faithkeeper Lyons' simple and disruptive formulation, "sovereignty is the act thereof."³⁷ What does Indigenous sovereignty look like?

³³ Adam Dombvari, *Doomsday Clock Set at 89 Seconds to Midnight, Closest Ever to Human Extinction*, January 28, 2025, <https://thebulletin.org/2025/01/press-release-doomsday-clock-set-at-89-seconds-to-midnight-closest-ever-to-human-extinction/>.

³⁴ Cf. Bertrand De Jouvenel, *Sovereignty: An Inquiry into the Political Good* (CUP Archive, 1957); Philpott, "Sovereignty," Fall 2024, ed. Zalta and Nodelman (Metaphysics Research Lab, Stanford University, 2024); Jacques Maritain, *Man and the State* (CUA Press, 1998).

³⁵ A Preface to Challenging the Justifications of Domination through Religion: "We were planting corn, and they were planting crosses" and "Challenging the Justifications of Domination through Law: Indigenous Resistance and the Undoing of Christian Empire".

³⁶ George E. Tinker and Roger Green, "'eurochristian', Or What Are We Going To Do With White People – Revisited Part 1," Blog, *New Polis*, February 16, 2023, <https://thenewpolis.com/2023/02/16/eurochristian-or-what-are-we-going-to-do-with-white-people-revisited-tink-tinker-and-roger-green-part-1/>; George E. Tinker and Roger Green, "'eurochristian', Or What Are We Going To Do With White People – Revisited Part 2," Blog, *New Polis*, March 1, 2023, <https://thenewpolis.com/2023/03/01/eurochristian-or-what-are-we-going-to-do-with-white-people-revisited-tink-tinker-and-roger-green-part-2/>; George E. Tinker and Roger Green, "'eurochristian', Or What Are We Going To Do With White People – Revisited Part 3," Blog, *New Polis*, March 17, 2023, <https://thenewpolis.com/2023/03/17/eurochristian-or-what-are-we-going-to-do-with-white-people-revisited-tink-tinker-and-roger-green-part-3/>; George E. Tinker and Roger Green, "'eurochristian', Or What Are We Going To Do With White People – Revisited Part 4," Blog, *New Polis*, April 9, 2023, <https://thenewpolis.com/2023/04/09/eurochristian-or-what-are-we-going-to-do-with-white-people-revisited-tink-tinker-and-roger-green-part-4/>.

³⁷ Lyons, "Law, Principle, and Reality"; Lyons, "'Sovereignty and the Natural World Economy' as Part of 'the Current Picture: Progress or Impasse?'"

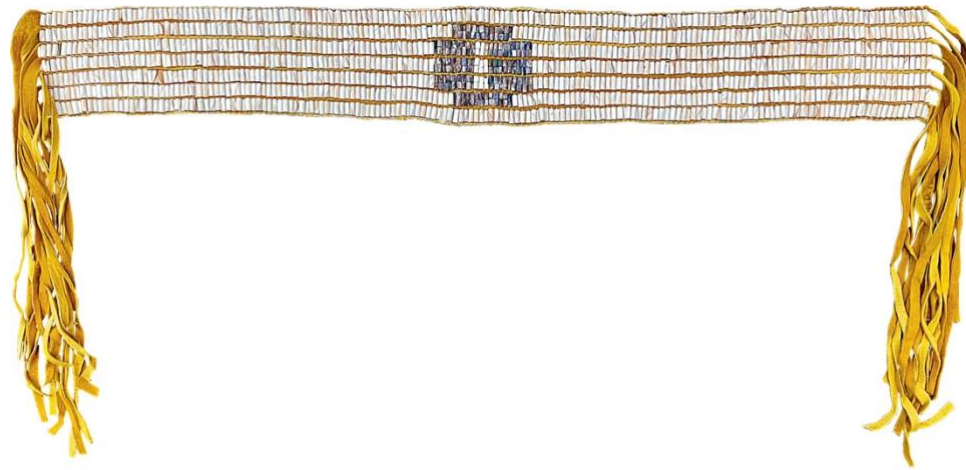


Figure 1. Reproduction of the One Dish One Spoon Wampum Belt by Richard David Hamell. Actual wampum from 1650s (Seneca) surface collection, leather, vegetable fibers, 8.3 × 72.4 cm. Image used with permission.³⁸

It looks like the One Dish One Spoon Wampum Belt (see figure 1). This belt represents the oldest treaty between the Haudenosaunee and the Anishinaabe; its meaning and history are multi-layered and multi-faceted. The purple Quahog shells in the middle represent one dish and one spoon. It reminds all parties to the treaty that we are all living in the same world, eating from the same dish with one spoon. It is a reminder to treat Mother Earth as a relative, not a resource. When you find a plant in the forest, like the strawberry, leave the first one and the second one you see for others, and take the third. It is also a reminder not to take or eat more than you need, and to live in a mindset of abundance, not scarcity. How do you translate a centuries-old treaty that is still active and represents a reciprocal relationship into English? You can do it, but it is imperfect. As Shawnee/Lenape scholar Steven T. Newcomb reminds us, it requires dismantling the frameworks of domination within our minds and creating new definitions of words and new paradigms of knowledge.³⁹ When thinking and speaking of Indigenous sovereignty, we need a shared collective language that recognizes the power and complexity of our lifeways and knowledges that reside in our languages and within our Mother Earth, while also acknowledging the limits of communication under systems of domination. Therefore, we propose 1) reconnecting with our Indigenous languages, traditions, and territories, 2) using traditional modes of international Indigenous communication like wampum, and 3) repurposing international languages to serve our needs.

³⁸ Richard Hamell, *Dish With One Spoon (Reproduction)*, 2020, Wampum, 8.3 × 72.4 cm, https://wampumbear.com/w_dish%20with%20one%20spoon%20belt; Richard Hamell and Ansley Jemison, *Dish With One Spoon (Reproduction)*, n.d., Wampum and Acrylic, Canada's National History Society, <https://www.canadahistory.ca/explore/settlement-immigration/gakina-gidagwi-igoomin-anishinaabewiyang-we-are-al>.

³⁹ Steven T. Newcomb, *Pagans In The Promised Land: Decoding The Doctrine Of Christian Discovery* (Fulcrum Publishing, 2008); *The Doctrine of Discovery: Unmasking the Domination Code*, Documentary, produced by Steven T. Newcomb and Sheldon P. Wolfchild, directed by Sheldon P. Wolfchild (38 Plus 2 Productions, 2015), Streaming, 01:02:04, <https://vimeo.com/ondemand/dominationcode>; Steven T. Newcomb, "Original Nations of 'Great Turtle Island' and the Genesis of the United States," in *The Wiley Blackwell Companion to Religion and Politics in the U.S.* (2016), <https://doi.org/10.1002/9781118528631.ch1>.

Peter Jemison (Seneca Nation, Huron Clan) explains that Haudenosaunee wampum belts are such an essential socio-cultural means of communication because they are living relatives that continue to hold the meanings they had hundreds to thousands of years ago. These wampum belts are held by wampum keepers who feed and nourish the wampum in many ways, one of which is telling their stories. Each wampum belt has protocols for proper relationships with the belt, for when, where, and how to tell the story, and much more. Viewing the One Dish One Spoon Wampum Belt (figure 1) helps understand and situate Indigenous sovereignty within traditional Haudenosaunee lifeways.⁴⁰



Figure 2. Two Row Wampum Belt replica by Faithkeeper Tony Goneya (Bear Clean, Onondaga Nation)⁴¹

Likewise, the first Haudenosaunee treaty with the Dutch is represented by the Two Row Wampum Belt. This treaty between the Haudenosaunee and the Dutch is well known; it means both parties traveling down the river of life, each in their own canoe, side by side, as Jake Edwards (Onondaga Nation, Eel Clan) teaches. Neither side is interfering with the other, and both have a responsibility to care for and maintain a proper relationship with the natural world surrounding each purple row. They are to address communal issues and concerns and fulfil their duties to the world on both sides.⁴² Ancestor Irving Powless, Jr. (Onondaga Nation, Beaver Clan) describes the belt in detail, explaining that there are three white rows between the two vessels, which symbolize peace, a good mind, and strength; they help keep the vessels connected.⁴³ These are two examples of what unmodified, uncarved out Indigenous sovereignty can look like. It is making treaties, maintaining nation-to-nation relationships, and ensuring that Mother Earth is centered in the conversation and that all living beings are included.

⁴⁰ Hamell and Jemison, *Dish With One Spoon* (Reproduction).

⁴¹ Anthony Goneya, *Teioháte Kaswenta (Two-Row Wampum Belt) Replica*, 2016, Ceramic beads, leather, 11x25 inches, Wampum Bear, https://wampumbear.com/w_two%20row%20belt.

⁴² José Barreiro et al., *Basic Call to Consciousness*, [Rev. ed.] ([Akwasasne Notes] Native Voices, 2005), 100.

⁴³ Irving Powless, "Treaty Making," in *Treaty of Canandaigua 1794: 200 Years of Treaty Relations between the Iroquois Confederacy and the United States* (Clear Light Publishers, 2000), 22–24.

Conclusion

For Indigenous nations, Sovereignty is still the issue. But as we have argued throughout this essay, not all sovereignties are created equal, and not all uses of the term advance liberation. The modern doctrine of nation-state sovereignty emerges from a distinctly *eurochristian* genealogy in which the sovereignty of God and the sovereignty of the state mirror and reinforce one another. As political theologians have long noted, the modern theory of the state is a baptized political theology: concepts such as supreme authority, territorial integrity, and plenary power are Christian concepts that have been thinly secularized. Wendy Brown reminds us that “sovereignty secularized for political purposes does not lose its religious structure or bearing, even as it ceases to have the direct authority of God at its heart.”⁴⁴ *Eurochristian* sovereignty, whether draped in the robes of divine right, natural law, or constitutionalism, continues to sustain and maintain a theology of domination.

This is why merely multiplying adjectival sovereignties — *tribal* sovereignty, *energy* sovereignty, *cannabis* sovereignty, *gaming* sovereignty — cannot resolve the crisis. These carve-outs leave intact the Westphalian-Christian architecture that authorizes settler-colonial secularized theologies of domination, in which settler-colonial states decide when, where, and for whom “sovereignty” applies, thereby emptying the concept of the Indigenous form and content. Adjectival sovereignties risk becoming techniques of management rather than paths to freedom, offering Indigenous nations a constrained participation in a system never designed for them. As Newcomb, d’Errico, and others demonstrate, Federal Indian Law — more accurately, *Federal Anti-Indian Law* — reveals how U.S. control over “tribal sovereignties” functions as an active claim of dominance, not a neutral status. Even apparent “victories” such as *McGirt v. Oklahoma* remain provisional because Congress reserves for itself the authority to dissolve Indigenous land rights at will. Within any framework that preserves settler colonial *eurochristian* hegemony and the divinatory *plenary power*, sovereignty is always already the settler’s.

Against this background, Indigenous leaders like Faithkeeper Lyons invite us to return to a precolonial and decolonial epistemology of healing by curing our ontology. To put it simply, “to survive, we [as a species] must change our values.”⁴⁵ Listening to and learning from Indigenous wisdom is how we change our values and reconnect with the land and the natural world, working to restore the relationships of balance and reciprocity. When one begins to inhabit the value change, one may understand more clearly Newcomb’s insistence on the original, free, prior, and existing self-determining practices of Indigenous nations, which is what freedom and sovereignty look like. In an image, the Hiawatha belt is being woven and raised, uniting five warring nations (Mohawk, Oneida, Onondaga, Cayuga, and Seneca) on the shores of Onondaga under the teachings of the Peacemaker and with assistance from Jikohnsaseh and Hiawatha. It is that moment. The Haudenosaunee Confederacy is woven together in unity, and the sound mind is open to sharing its teachings and welcoming other nations, such as the Tuscarora (figure 3). When one begins to embrace this epistemological shift, it becomes easier to understand and imagine a sovereignty that does not begin at Westphalia,

⁴⁴ Wendy Brown, *Walled States, Waning Sovereignty* (Zone Books, 2010), 85.

⁴⁵ Oren Lyons, “Value Change For Survival,” *American Indian Institute*, 2020, American Indian Law Alliance, https://aila.ngo/wp-content/uploads/2023/02/Value_Change_for_Survival.pdf.

nor with papal bulls, nor with colonial charters; instead, it has existed since time immemorial on Turtle Island. Indigenous nations ordered their lives, territories, and relations long before the emergence of the eurochristian nation-state. Faithkeepers Lyons's deceptively simple formulation – "sovereignty is the act thereof" – shifts attention from ideology to praxis. Indigenous sovereignty does not exist only as some abstract concept to be bandied about by philosophers and legal scholars; it exists where Indigenous nations act as nations, in accordance with their own languages, laws, and responsibilities, rather than where settler states grant recognition or carve out exceptions. Sovereignty is lived in all of its quotidian complexity. It is as simple and complicated as that.



Figure 3. *The Hiawatha Belt Returns to Onondaga Lake. Image by Philip P. Arnold and Indigenous Values Initiative*⁴⁶

Haudenosaunee wampum belts illuminate what such an unmodified sovereignty looks like in practice. The Hiawatha Belt (figure 3), The One Dish One Spoon (figure 1), and Two Row Wampum (figure 2) Belts do not map sovereignty as rigid lines on a territorial grid; they encode living relationships of reciprocity, responsibility, and mutual non-interference, in which Mother Earth and all living beings are participants, not objects. These belts are not metaphors for an abstract "right to rule" but protocols for sharing, caretaking, and co-existing – what we might call an embodied, relational sovereignty. In this sense, Indigenous sovereignty is inseparable

⁴⁶ Indigenous Values Initiative, *Hiawatha Belt Returns to Onondaga Lake*, October 18, 2016, 3264 × 1838 pixels, Indigenous Values Initiative, <https://indigenousvalues.org/hiawatha-belt/>; Alex Hamer, "Hiawatha Belt Returns to Onondaga Lake," News, *Indian Country Today*, October 18, 2016, <https://web.archive.org/web/20161021094332/https://indiancountrytodaymedianetwork.com/2016/10/18/hiawatha-belt-returns-onondaga-lake-166122>.

from the territorial integrity and vitality of Mother Earth. To think of Indigenous sovereignty apart from the land, waters, and more-than-human relatives is already to capitulate to the Doctrine of Christian Discovery and its logic of extraction.

Placing *eurochristian* sovereignty and Indigenous sovereignty side by side exposes their incompatibility. In the eurochristian model, sovereignty tends toward vertical integration: domination over land equates to domination over people. Eurochristian sovereignty expands through enslavement, extraction, and exclusion; it defines itself by who can be sacrificed. Theologies like John Piper's strong doctrine of divine sovereignty, and the more explicitly dominionist projects of R.J. Rushdoony and the Seven Mountain Mandate, provide a religious grammar for such politics, envisioning a world in which all nations must ultimately be subordinated to the glory of God as construed by particular *eurochristian* communities.⁴⁷ This same grammar easily underwrites nuclear sovereignty, in which a handful of states claim the right to end the world in the name of their own security. In such a regime, Westphalia becomes an empty signifier – invoked when useful, ignored when inconvenient – while Indigenous nations are rendered perpetually vulnerable.

If, as Bartelson argues, modern frameworks of sovereignty are historically contingent ways of organizing political knowledge and power rather than timeless facts, then it can be otherwise. The task is not to perfect Westphalia or to find the right adjectival modifier, but to displace the *eurochristian* imaginary that makes this sovereignty appear natural and inevitable. This requires dismantling the frameworks of domination in our minds and in our languages, and recovering older, more responsible ways of naming and practicing political life.⁴⁸ It also requires refusing the false promise that crypto, cannabis, or casino economies will save us while leaving Christian dominion and nuclear supremacy intact; these are, at best, new currencies circulating within the same imperial cosmology.

We conclude, then, by returning to where we began: sovereignty is still the issue – but the question must be sharpened. *Whose* sovereignty? *Which* sovereignty? For us, the way forward lies in returning to the original free, prior, and existing sovereignty of Indigenous nations and peoples, grounded in their own languages, laws, and treaties, and inseparable from the sovereignty of Mother Earth. This means:

1. Reconnecting with Indigenous languages, traditions, and territories, so that our political concepts once again flow from our own grounded epistemologies and ontologies rather than from eurochristian categories.
2. Revitalizing Indigenous diplomatic forms, such as wampum belts and other traditional protocols, as primary modes of nation-to-nation and people-to-people relations, not as artifacts to be translated into state-centric law.
3. Repurposing international frameworks and forums so that they serve Indigenous lifeways and the rights of all living beings, rather than merely legitimating settler colonial nation-states.

Such a reorientation does not simply add Indigenous sovereignty to an already crowded international order; it calls that order itself into question. It asks whether a system built on

⁴⁷ Cf. Matthew Neal Boedy, *The Seven Mountains Mandate: Exposing the Dangerous Plan to Christianize America and Destroy Democracy*, First edition (Westminster John Knox Press, 2025).

⁴⁸ Newcomb, *Pagans in the Promised Land; Unmasking the Domination Code*.

Christian discovery, territorial domination, and nuclear threat can ever be reconciled with democracy, pluralism, and the continuity of life on Earth. Our answer is no. The alternative is not a return to some imagined ideological purity but a movement beyond false sentimentality, toward the historic, present, and future nuanced, complicated, and ultimately rewarding embodied sovereignty found in Indigenous principles like the Hiawatha Belt, the Dish with One Spoon, the Two Row, and the countless other Indigenous treaties that remember how to live well together with all living beings and the natural world.

In conclusion, Indigenous sovereignty is not a special case within the law of states; it is a living challenge to the entire *eurochristian* regime of sovereignty. To take that challenge seriously is to recognize that decolonization cannot be accomplished through adjectival sovereignties or half-measures. It demands that we join Indigenous nations in acting otherwise – acting sovereignly – in ways that center responsibility, reciprocity, and the enduring territorial integrity of Mother Earth. Only then can we begin to dismantle doctrines of domination and to inhabit a different political and spiritual horizon, in which the question is no longer how to justify sovereignty over others, but how to fulfill our responsibilities to all our relations.

Bibliography

- Acosta, Tupac Enrique. "Superseding the Doctrine of Discovery: World Water One." *Doctrine of Discovery Project*, March 29, 2023.
<https://doctrineofdiscovery.org/blog/1CEMANAHUAC/>.
- Apache Stronghold v. United States (9th Circuit of Appeals 2024).
<https://law.justia.com/cases/federal/appellate-courts/ca9/21-15295/21-15295-2024-03-01.html>.
- Arnold, Philip P., and Sandra L. Bigtree. "Ten Religious Themes of the Doctrine of Christian Discovery (DoCD) That Contrast with Indigenous Values." *Doctrine of Discovery Project*, September 26, 2022. <https://doctrineofdiscovery.org/10-religious-dimensions/>.
- Barreiro, José, Oren Lyons, and John Mohawk. *Basic Call to Consciousness*. [Rev. ed.]. [Akwesasne Notes] Native Voices, 2005.
- Bartelson, Jens. *A Genealogy of Sovereignty*. Cambridge University Press, 1995.
- Boedy, Matthew Neal. *The Seven Mountains Mandate: Exposing the Dangerous Plan to Christianize America and Destroy Democracy*. First edition. Westminster John Knox Press, 2025.
- Bourdieu, Pierre. "Habitus." In *Habitus: A Sense of Place*. Routledge, 2017.
- Bourdieu, Pierre. "Structures, Habitus, Practices." In *Rethinking the Subject*. Routledge, 2018.
- Breau, Susan. *The Responsibility to Protect in International Law: An Emerging Paradigm Shift*. Routledge, 2016.
- Brett, Adam D. J., and Betty Hill. "Examining the Doctrine of Discovery in Religion and Indigenous Studies." *Religion Compass* 20, no. 1 (2026): e70039.
<https://doi.org/10.1111/rec3.70039>.
- Brett, Adam DJ. "Catastrophic Christianity: An Iconological Study of the Messianic Idea in American Protestant Christianity Circa 1900-1940." In *ProQuest Dissertations and Theses*. Ph.D., Syracuse University, 2022. 2700418394. ProQuest Dissertations & Theses Global.
<https://surface.syr.edu/etd/1544/>.
- Brett, Adam DJ, and Betty Hill (Lyons). "Documenting Domination: From the Doctrine of Christian Discovery to Dominion Theology." *Religions* 15, no. 12 (2024).
<https://doi.org/10.3390/rel15121493>.
- Brookings Institution. *Sovereignty as Responsibility*. Brookings Institution, 2012.
<http://www.brookings.edu/research/books/1996/sovrnty>.
- Brown, Wendy. *Walled States, Waning Sovereignty*. Zone Books, 2010.
- Byaruhanga, Ronald, and Ellinor Isgren. "Rethinking the Alternatives: Food Sovereignty as a Prerequisite for Sustainable Food Security." *Food Ethics* 8, no. 2 (2023): 16.
- Byrd, Jodi A. "Weather with You: Settler Colonialism, Antiracism, and the Grounded Relationalities of Resistance." *Critical Ethnic Studies* 5, nos. 1-2 (2019): 207-14.
- Chinn, Nicholas D. *Sovereignty Games: Tribal Gaming Regulation in the Contemporary United States*. 2025.
- Cleary, Conor P. "McGirt v. Oklahoma: A Primer." *Oklahoma Bar Journal* 3 (2022).
<https://www.okbar.org/barjournal/march-2022/cleary/>.
- Crosby, Andrew. "Contesting Cannabis: Indigenous Jurisdiction and Legalization." *Canadian Public Administration* 62, no. 4 (2019): 634-55.
- Croxton, Derek. "The Peace of Westphalia of 1648 and the Origins of Sovereignty." *The International History Review* 21, no. 3 (1999): 569-91.

- De Jouvenel, Bertrand. *Sovereignty: An Inquiry into the Political Good*. CUP Archive, 1957.
- Dombovari, Adam. *Doomsday Clock Set at 89 Seconds to Midnight, Closest Ever to Human Extinction*. January 28, 2025. <https://thebulletin.org/2025/01/press-release-doomsday-clock-set-at-89-seconds-to-midnight-closest-ever-to-human-extinction/>.
- Encinas Hernández, Ivon Cristina. *Las Ofrendas de Tepeilhuitl Entre Los Nahuas Prehispánicos, Reminiscentes En El Atltepeilhuitl y El Carnaval Contemporáneo de Papalotla, Tlaxcala*. 2025.
- Episode 009: *McGirt v. Oklahoma: Revealing and Concealing Domination*. December 17, 2025. <https://dominationchronicles.com/episodes/e009-mcgirt-oklahoma-revealing-concealing/>.
- Errico, Peter P. d'. *Federal Anti-Indian Law: The Legal Entrapment of Indigeneous Peoples*. 1st ed. Bloomsbury, 2024.
- Fagelson, David. "Two Concepts of Sovereignty: From Westphalia to the Law of Peoples?" *International Politics* (The Hague) 38, no. 4 (2001): 499–514.
- Fletcher, Matthew L.M. *Statement of Matthew L.M. Fletcher before the Senate Committee on Indian Affairs – Oversight Hearing on Fulfilling the Federal Trust Responsibility: The Foundation of the Government-to-Government Relationship*. Legal Research Paper Series. Michigan State University College of Law, 2012. <https://ssrn.com/abstract=2060395>.
- Garcia Sanchez, Guillermo J. "In the Name of Energy Sovereignty." *BCL Rev.* 63 (2022): 2475.
- Global Centre for the Responsibility to Protect. "About the Responsibility to Protect." NGO. R2P, Global Centre for the Responsibility to Protect. Accessed January 1, 2026. http://www.globalr2p.org/about_r2p.
- Global Centre for the Responsibility to Protect. "What Is R2P?" NGO. R2P, Global Centre for the Responsibility to Protect. Accessed January 1, 2026. <https://www.globalr2p.org/what-is-r2p/>.
- Gonyea, Anthony. *Teioháte Kaswenta (Two-Row Wampum Belt) Replica*. 2016. Ceramic beads, leather, 11x25 inches. Wampum Bear. https://wampumbear.com/w_two%20row%20belt.
- Hamell, Richard. *Dish With One Spoon (Reproduction)*. 2020. Wampum, 8.3 × 72.4 cm. https://wampumbear.com/w_dish%20with%20one%20spoon%20belt.
- Hamell, Richard, and Ansley Jemison. *Dish With One Spoon (Reproduction)*. n.d. Wampum and Acrylic. Canada's National History Society. <https://www.canadahistory.ca/explore/settlement-immigration/gakina-gidagwi-igoomin-anishinaabewiyang-we-are-al>.
- Hamer, Alex. "Hiawatha Belt Returns to Onondaga Lake." News. *Indian Country Today*, October 18, 2016. <https://web.archive.org/web/20161021094332/https://indiancountrytodaymedianetw.ork.com/2016/10/18/hiawatha-belt-returns-onondaga-lake-166122>.
- Heath, Joseph J. "Nations Are Sovereign: They Are Not 'Tribes.'" BLog. *Doctrine of Discovery Project*, 2020. <https://doctrineofdiscovery.org/assets/pdfs/NATION-NOT-TRIBE3-6-18.pdf>.
- Holden, John T. "Access or Sovereignty." *Emory Law Journal*, Forthcoming, 2024.
- Indigenous Values Initiative. "Dum Diversas." *Doctrine of Discovery*, July 23, 2018. <https://doctrineofdiscovery.org/dum-diversas/>.
- Indigenous Values Initiative. *Hiawatha Belt Returns to Onondaga Lake*. October 18, 2016. 3264 × 1838 pixels. Indigenous Values Initiative. <https://indigenousvalues.org/hiawatha-belt/>.

- Ingersoll, Julie. *Building God's Kingdom: Inside the World of Christian Reconstruction*. Oxford University Press, 2015. WorldCat.
- Koutouki, Konstantia, and Katherine Lofts. "Cannabis, Reconciliation, and the Rights of Indigenous Peoples: Prospects and Challenges for Cannabis Legalization in Canada." *Alta. L. Rev.* 56 (2018): 709.
- Lone Wolf v. Hitchcock (The United States Supreme Court January 5, 1903). <https://supreme.justia.com/cases/federal/us/187/553/>.
- Lyons, Oren. "Law, Principle, and Reality." *N.Y.U. Review of Law & Social Change* 20, no. 2 (1992): 209–15.
- Lyons, Oren. "'Sovereignty and the Natural World Economy' as Part of 'the Current Picture: Progress or Impasse?'" In *Justice for Natives*, edited by Andrea P. Morrison and Irwin Cotler. Searching for Common Ground. McGill-Queen's University Press, 1997. JSTOR. <http://www.jstor.org/stable/j.ctt7zn4m.13>.
- Lyons, Oren. "Value Change For Survival." *American Indian Institute*, 2020. American Indian Law Alliance. https://aila.ngo/wp-content/uploads/2023/02/Value_Change_for_Survival.pdf.
- Maritain, Jacques. *Man and the State*. CUA Press, 1998.
- McGirt v. Oklahoma (The United States Supreme Court July 9, 2020). <https://supreme.justia.com/cases/federal/us/591/18-9526/>.
- McVicar, Michael J. *Christian Reconstruction : R.J. Rushdoony and American Religious Conservatism*. 1 [edition]. 1 online resource. The University of North Carolina Press, 2015. <https://library.biblioboard.com/content/7b26171a-6c95-473d-9052-e478604e887e>.
- Morton v. Mancari (The United States Supreme Court 1974). <https://supreme.justia.com/cases/federal/us/417/535/>.
- Newcomb, Steven T. "Original Nations of 'Great Turtle Island' and the Genesis of the United States." In *The Wiley Blackwell Companion to Religion and Politics in the U.S.* 2016. <https://doi.org/10.1002/9781118528631.ch1>.
- Newcomb, Steven T. *Pagans In The Promised Land: Decoding The Doctrine Of Christian Discovery*. Fulcrum Publishing, 2008.
- Newcomb, Steven T., and Peter d'Errico. "Supreme Court Justices Attack 'Plenary Power' over Native Peoples." *The Domination Chronicles Podcast*, November 18, 2025. <https://dominationchronicles.com/episodes/e006-plenary-power/>.
- Oxford English Dictionary. *Sovereignty*, n., Sense II.5. Oxford University Press, June 2025. Oxford English Dictionary. <https://doi.org/10.1093/OED/3200619526>.
- Patel, Raj. "Food Sovereignty." *The Journal of Peasant Studies* 36, no. 3 (2009): 663–706.
- Philpott, Daniel. "Sovereignty." In *The Stanford Encyclopedia of Philosophy*, Fall 2024, edited by Edward N. Zalta and Uri Nodelman. Metaphysics Research Lab, Stanford University, 2024. <https://plato.stanford.edu/archives/fall2024/entries/sovereignty/>.
- Philpott, Daniel. "Sovereignty." In *The Stanford Encyclopedia of Philosophy*, Fall 2024, edited by Edward N. Zalta and Uri Nodelman. Metaphysics Research Lab, Stanford University, 2024. <https://plato.stanford.edu/archives/fall2024/entries/sovereignty/>.
- Piper, John. *Let the Nations Be Glad!: The Supremacy of God in Missions*. Baker Academic, 2010.
- Piper, John. "The Supremacy of God among All the Nations." *International Journal of Frontier Missions* 13, no. 1 (1996): 15–26.
- Piper, John. *The Supremacy of God in Preaching*. Baker Books, 2015.

- Powless, Irving. "Treaty Making." In *Treaty of Canandaigua 1794: 200 Years of Treaty Relations between the Iroquois Confederacy and the United States*. Clear Light Publishers, 2000.
- Quentin Veneno, Jr. v. United States. 2026. https://www.supremecourt.gov/opinions/25pdf/24-5191_6479.pdf.
- Raimi, Daniel, and Alana Davicino. "Securing Energy Sovereignty: A Review of Key Barriers and Opportunities for Energy-Producing Native Nations in the United States." *Energy Research & Social Science* 107 (2024): 103324.
- Reed, Kaitlin. "Cannabis, Settler Colonialism, and Tribal Sovereignty in California." In *The Routledge Handbook of Post-Prohibition Cannabis Research*. Routledge, 2021.
- Reike, Ruben, and Alex Bellamy. "The Responsibility to Protect and International Law." *Global Responsibility to Protect* 2, no. 3 (2010): 267–86.
- Rosenthal, Sophie. "Stephen Miller's Comments on Presidential Powers Spark Search Interest in 'Plenary Authority.'" Blog. *WUSA9*, October 8, 2025. <https://www.wusa9.com/article/news/verify/what-is-plenary-authority-stephen-miller-donald-trump-cnn/65-050f2773-f146-46f7-8bb1-abcca0881859#>.
- Sampson, Devon, Marcela Cely-Santos, Barbara Gemmill-Herren, et al. "Food Sovereignty and Rights-Based Approaches Strengthen Food Security and Nutrition across the Globe: A Systematic Review." *Frontiers in Sustainable Food Systems* 5 (2021): 686492.
- Stephens v. Cherokee Nation (The United States Supreme Court 1899). <https://supreme.justia.com/cases/federal/us/174/445/>.
- Timmermann, Cristian, and Eduardo Noboa. "Energy Sovereignty: A Values-Based Conceptual Analysis." *Science and Engineering Ethics* 28, no. 6 (2022): 54.
- Tinker, George E., and Roger Green. "'eurochristian', Or What Are We Going To Do With White People – Revisited Part 1." Blog. *New Polis*, February 16, 2023. <https://thenewpolis.com/2023/02/16/eurochristian-or-what-are-we-going-to-do-with-white-people-revisited-tink-tinker-and-roger-green-part-1/>.
- Tinker, George E., and Roger Green. "'eurochristian', Or What Are We Going To Do With White People – Revisited Part 2." Blog. *New Polis*, March 1, 2023. <https://thenewpolis.com/2023/03/01/eurochristian-or-what-are-we-going-to-do-with-white-people-revisited-tink-tinker-and-roger-green-part-2/>.
- Tinker, George E., and Roger Green. "'eurochristian', Or What Are We Going To Do With White People – Revisited Part 3." Blog. *New Polis*, March 17, 2023. <https://thenewpolis.com/2023/03/17/eurochristian-or-what-are-we-going-to-do-with-white-people-revisited-tink-tinker-and-roger-green-part-3/>.
- Tinker, George E., and Roger Green. "'eurochristian', Or What Are We Going To Do With White People – Revisited Part 4." Blog. *New Polis*, April 9, 2023. <https://thenewpolis.com/2023/04/09/eurochristian-or-what-are-we-going-to-do-with-white-people-revisited-tink-tinker-and-roger-green-part-4/>.
- United Nations. Office of the Special Adviser on the Prevention of Genocide. "Mission Statement." United Nations. Accessed January 8, 2012. <https://www.un.org/en/preventgenocide/adviser/index.shtml>.
- United Nations. Office of the Special Adviser on the Prevention of Genocide. "Responsibility to Protect." United Nations. Accessed March 22, 2016. <https://www.un.org/en/preventgenocide/adviser/responsibility.shtml>.

- Watts, Michelle. "Making Sovereignty Mean Something: Native Nations and Creative Adaptation." *IAFOR Journal of Cultural Studies* 6, no. 1 (2021): 5–22.
<http://iafor.org/archives/journals/iafor-journal-of-cultural-studies/10.22492.ijcs.6.1.01.pdf>.
- Welsh, Jennifer, and Maria Banda. "International Law and the Responsibility to Protect: Clarifying or Expanding States' Responsibilities?" *Global Responsibility to Protect* 2, no. 3 (2010): 213–31.
- Wolfchild, Sheldon P., dir. *The Doctrine of Discovery: Unmasking the Domination Code*. Documentary. Produced by Steven T. Newcomb and Sheldon P. Wolfchild. 38 Plus 2 Productions, 2015. Streaming, 01:02:04.
<https://vimeo.com/ondemand/dominationcode>.
- Wood, Alyssa. "When the River Runs Green: The Intersection Between Tribal Sovereignty, Economy, and Environmental Stewardship." *Footnotes: A Journal of History* 7 (2025).
- Worthen, Molly. "The Chalcedon Problem: Rousas John Rushdoony and the Origins of Christian Reconstructionism." *Church History* 77, no. 2 (2008): 399–437. Cambridge University Press Journals. <https://doi.org/10.1017/S0009640708000590>.